

Mormugao Port Rules, 1966

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Union of India - Act

Mormugao Port Rules, 1966

UNION OF INDIA

India

Mormugao Port Rules, 1966

Rule MORMUGAO-PORT-RULES-1966 of 1966

Published on 15 March 1966

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Mormugao Port Rules, 1966

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2016.

G.S.R. 935, dated 15th March, 1966 - In exercise of the powers conferred by sub-section (1) of section (6) of the Indian Ports Act, 1908 (15 of 1908) the Central Government hereby makes the following Rules for the Port of Mormugao, the same having been previously published as required by sub-section (2) of the said section, namely:

1.

Short Title

- These rules may be called the Mormugao Port Rules, 1966.

2.

Definitions

- In these rules, unless the context otherwise requires:-

(a)

"Act" means the Indian Ports Act, 1908 (15 of 1908);

(b)

"Board" means the Board of Trustees constituted under the Major Port Trusts Act, 1963 (38 of 1963) for the Port and includes the body of persons appointed to be the Conservator of the Port under the Act;

(c)

"Dangerous goods" means goods as defined in the Indian Merchant Shipping (Carriage of Dangerous Goods) Rules, 1954;

(d)

"Deputy Conservator" means the officer, appointed by the Board to assist the conservator in the performance of any duty imposed upon him by or under the Act;

(e)

"Explosives" means explosives as defined in the Indian Explosives Act, 1884 (4 of 1884);

(f)

"Harbour" means that part of the Port, in which sections 31 and 32 of the Act are for the time beings in force;

(g)

"Harbour Master" means the officer, appointed by the Conservator, to have charge, under supervision of the Deputy Conservator, of the berthing, mooring and movement of every vessel within the Port and includes any person acting under instructions of the Harbour Master;

(h)

"Master" includes any person (except the pilot or Harbour Master) having the command of a ship;

(i)

"Navigable Channel" means that portion of the Port used from time to time by seagoing vessels and sea planes;

(j)

"Pilot" means the person for the time being authorized by the Central Government to pilot vessels under Sub-section (3) of the Act;

(k)

"Port" means the Port of Mormugao, and the navigable channels leading to it in which the Act is for the time being in force;

(l)

"Sea-going vessel" means the vessel proceeding to sea beyond inland waters or beyond waters declared to be smooth or partially smooth by the Central Government;

(m)

"Vessel" includes any ship, boat, sailing vessel of any other discription used in navigation.

3.

Application

- Save as otherwise expressly provided in these rules, these rules shall be applicable only within the local limits of the Port.

2. Nothing in these rules shall affect the provisions of any rule made under any law made by Parliament or any existing Central Law.

Entering Or Leaving Port

4.

No sea-going vessel shall enter or leave the harbour at any time without having on board a pilot.

Provided that a sea-going vessel may leave the harbour without having on board a pilot under stress of weather after giving the Port Signal Station an intimation of her intention to do so, and after taking the consent of the Harbour Master.

5.

Every sea-going vessel shall on entering or leaving the Port between sunrise and sunset fly her national flag and shall show her signal letters.

6.

Every sea-going vessel entering or leaving the harbour shall be provided with the efficient rope ladder and if the pilot

considers the ladder or the man-ropes provided by a vessel to be unsafe. he may refuse to board or leave her, as the case may be until a strong and efficient rope ladder and stout man-ropes are provided as required under the Indian Merchant Shipping (Pilot ladder) Rules, 1953.

7.

The Master of a vessel, entering or leaving the Port, shall be responsible for the maintenance of normal handling power to work main engines at full speed, ahead or astern, as may be required until such time as the vessel is berthed or cleared of navigable channels.

8.

When a sea-going vessel is expected to arrive in the Port, her agents shall send to the Conservator of the Port, at the earliest, possible moment a notice in the form given below:

Form

Port of Mormugao

Notice of the expected arrival of a vessel.

1. Name of vessel and nationality.
2. Net registered tonnage of the vessel.
3. Expected date and time of the arrival.
4. Draft on arrival.
5. Tonnage and description of cargo to be landed.
6. Tonnage and description of cargo to be shipped.
7. Expected duration of stay in the Port.
8. Particular Berth, if any, preferred by the agents.

9.

Last Port of call.

10.

Next port of call.

9. Pilots shall take vessels to sea from clear berths or bring them into Port/when the lights and navigation marks are visible and reasonably distant objects are discernible.

10. Proper look-out both day and night shall be maintained by vessels to give immediate notice of any obstructions or danger forward of the ship.

11.

No dangerous goods and explosives shall be permitted to be brought within the limits of the Port unless packed in manner, which in the opinion of the Deputy Conservator is adequate to withstand the ordinary risks of handling the transport by sea.

12.

Every vessel shall have sufficient number of suitable fenders ready for immediate use whenever there is risk of the vessel striking against any other object.

Berths and Stations

13.

(1)

Every vessel shall take up the berth or mooring or occupy the place assigned to her by the Deputy Conservator and shall change her berth, or move when required to do so by the Deputy Conservator.

(2)

No immobilised vessel shall be shifted without the orders of the Deputy Conservator.

14.

Every application for sea-going vessels to be moved or for any other assistance shall be made in writing and addressed to the Deputy Conservator between the hours of 9.00a.m. and 5.00 p.m. except on a Sunday or any other day declared as a holiday by the Conservator of the Port and in the case of an application which is required to be made on a Sunday or other holiday, the application shall be sent so as to reach the Deputy Conservator's office on the previous day. The application shall clearly indicate the maximum draft is expected to load.

15.

Every vessel within the harbour, shall employ such tug as is in the opinion of the Deputy Conservator, the Harbour

Master or the pilot-in-charge, necessary for manoeuvring and her safety.

16.

The following order of priority of berthing of seagoing vessels will be normally followed except when otherwise directed by the Deputy Conservator in the interests of navigation and safety:

(i)

Passenger vessels,

(ii)

Petroleum vessels,

(iii)

Vessels carrying food grains and perishable cargoes,

(iv)

Cargo vessels,

Note - The time of arrival at the Port is considered to be the time when the vessel comes under order of the Signal station regarding her entry to the harbour. A vessel that arrives outside the harbour and receives instruction to anchor during the night and to enter in the harbour at day break, is considered to have arrived before a ship which arrives and enters at day-break ahead of the ship that is anchored. The time of arrival at the Port is considered to be the time when the vessel comes under order of the Signal station regarding her entry to the harbour. A vessel that arrives outside the harbour and receives instruction to anchor during the night and to enter in the harbour at day break, is considered to have arrived before a ship which arrives and enters at day-break ahead of the ship that is anchored.

Striking Masts and Yards : Projections.

17.

Every vessel within the port lying at, proceeding to or from the moorings or jetties shall turn in all boats and projections (except fenders) likely to foul any other object. Every vessel within the Port shall strike its yards, top-mast etc. on being required to do so by the Deputy Conservator or his Assistants, whether by signals or otherwise.

Vessels taking in particular cargoes or taking in or discharging passenger

18.

Every vessel taking or discharging ballast or any kind of cargo, such as ammunition or other explosive kerosene oil, bones coral or other offensive articles and timber or passengers, within the Port, shall do so only at such berths moorings or anchorages as the Deputy Conservator may direct.

19.

No ballast, earth ashes, stones, rubbish waste material filth oil ballast and bilge water containing oil in a proportion of 100 parts or more in 1,000,000 parts shall be discharged or allowed to leak or flow from any vessel in the Port, without the prior permission of the Deputy Conservator.

20.

The master of every vessel shall take all necessary precautions by placing guards or otherwise to prevent injury to persons or damage to property.

21.

Every vessel when not working cargo shall have all open hatchways protected or closed.

Bunkering of vessel in liquid fuel

22.

Bunkering of every vessel with liquid fuel may be permitted at the quays by means of the service pipe lines, provided that the following conditions are fulfilled.

(a)

During all such time as any vessel is receiving liquid fuel in to her bunkers, the master or the First Mate of such vessel shall be present on board and it shall be incumbent upon him to see that these rules are complied with and that all reasonable precautions for safety are observed.

(b)

A ship's officer shall be on watch and an attendant shall be stationed alongside the flexible connecting pipe while bunkering is in progress.

(c)

Supplier of liquid fuel shall be responsible for seeing that all flexible pipes used for bunkering vessels are tested to a

pressure of 100 pounds per square inch before operations commence and that all joints are oil tight.

(d)

(i)

Every supplier of liquid fuel for bunkering shall be liable for any damage what over caused to cargo or property belonging to the Port, by any leakage of fuel or other causes.

(ii)

the master and owner or the agents of the vessel receiving such fuel shall also be liable for any such damage if caused by negligence or defect or failure of apparatus or appliances belonging to the vessel.

(e)

No cargo other than goods, unaffected by oil shall be allowed on the wharf within 50 feet of the oil stand pipes and shed doors immediately behind them shall be kept closed while bunkering is in progress.

(f)

Before bunkering commences, the ship's attendant shall see that the telephone connected to the oil company's depot is in working order.

(g)

An attendant shall be on duty at the pump throughout the time of bunkering.

(h)

At least two hours notice in writing shall be given to the Harbour Master before bunkering is commenced.

(i)

No bunkering shall be commenced unless the Port, the Officer is satisfied that all precautions necessary have been taken.

Keeping Free Passages

23.

The entrance to the harbour, every space between the different moorings within the harbour, every space in the vicinity of the quays and the turning basin shall be kept free to such extent as may be required by the Deputy Conservator.

Anchoring fastening mooring and unmooring

24.

No vessel shall make fast to or use any mooring without the permission of the Deputy Conservator or the Harbour Master.

25.

Every vessel underway or lying in the stream or at the mooring shall at all times have her anchors ready for letting go.

26.

No persons shall moor any vessel in any manner other than that prescribed by the Deputy Conservator or the Harbour Master, or alter the mooring of any vessel without the permission of the Deputy Conservator or the Harbour Master, save for the purpose of easing undue strain or for taking up undue slack.

27.

No vessel shall without the permission of the Deputy Conservator dismantle her engines or otherwise render herself incapable of movements.

28.

No vessel occupying a berth shall turn her screws without giving sufficient warning to all boats in the vicinity and with due precautions to the moorings etc.

Moving and Warping

29.

Every vessel within the Port shall be moved or warped from place to place as required and by such means or appliances as may be ordered by the Deputy Conservator.

30.

No vessel shall cast off a warp that has been made fast to her to assist a vessel moving without being required to do so by the pilot.

Fires and Lights

31.

(a) Fires on vessels shall be permitted only in galleys or properly constructed fire places.

(b)
The discharge of fire-works is prohibited on any vessel, wharf, quay pier, jetty or landing place.

(c)
No persons shall smoke or use naked lights of any description in a hold or between decks of a vessel or any enclosed space, in such vessel containing stores, cargo or inflammable materials and suitable notices to this effect shall be displayed in prominent places.

(d)
When a fire has broken out in any vessel, the Master or Officer in charge of vessels in neighboring berths or moorings shall furl their warnings and take the necessary steps to keep all the fire fighting equipments ready for use and prepare to slip their cables or hawsers.

(e)
No vessel shall be fumigated except at a place appointed by the Deputy Conservator for the purpose.

(f)
Pitch or dammer shall not be heated on board vessels within the Port, but in a boat alongside or astern nor shall spirits be drawn off in board such vessels by candle or other unprotected artificial lights.

Signals

32.
(a) The master of any vessel arriving within the Port with ammunition or explosives or gun powder on board as cargo or with inflammable cargo, shall display a red flag 'B' of the International Code of signals at the fore during daylight; and between sunset and sunrise shall exhibit a red light where it best be seen and visible all round the horizon, for such time as the ammunition, explosives or gunpowder may be on board within the local limits of the Port.

(b)
The use of 'sound signals' for attracting attention is prohibited on board vessels while within the local limits of the Port except for the purpose specified in regulations (15), (28) and (31) of the International Regulation for preventing collisions at sea and in case of emergency where assistance from the shore is urgently required in the interests of the safety of the vessel or when the pilot in charge thinks fit to do so.

(c)
All necessary signals can be made by vessels using the international Code of Signals and they will be acknowledged by the answering pendant being hoisted all the Signal Station masthead. Communications by the Morse and Semaphore Codes may be made to the Port Signal Station by day and by night using flag 'Z' by day and flashing 'Z' at short intervals by night to call up station.

All the nights signals shall be made in one hoist, the lights being in a vertical line one over the other not less than 1 meter apart with the exception of single light signals and of the second and the third signals which are to be hoisted as indicated against them:-

Signal

Day

Night

Where

hoisted

Signification

Flag

Q

To

be hoisted where best seen

My

ship is healthy and I request free pratique.

To

be shown where best seen, the lights being not more than 2 metres apart.

I

have not received free pratique.

Flag

QQ

To

be hoisted where best seen.

My

ship is suspected.

To

be shown where best, seen the lights being not more than 2 metres, apart.

I

have not received free, pratique.

Flag

QL

To

be hoisted where best seen

My

ship is infected.

To

be shown where best, seen the lights being not more than 2 metres, apart.

I

have not received free pratique.

Ensign

and House flag

To

be lowered half mast.

Death

on board while in port limits.

Masthead.

Pilot

Jack

Flags

DQ

Where

best seen, masthead, signal yard arm, or stay signal halliards

Am

on fire and require immediate assistance.

Flags

DV

Where

best seen, masthead signal yard arm, or stay signal halliards.

Have

sprung a leak and require immediate assistance.

Flags

DZ

Where

best seen, masthead, signal yard arm, or stay signal halliards

Require

immediate assistance.

Flags

B

To
be hoisted where it can best be seen and visible all round the
horizon,
Have
ammunition, or explosives or gunpowder or inflammable cargo on
board.
Flags
S, T
Where
best seen, mast head, signal yard arm, or stay signal halliards.
Want
Police
Flags
A, N, G
Where
best seen, mast head, signal yard arm, or stay signal halliards.
Have
parted moorings
Flags
YA
Do
Require
tug.
Flag
W
Do
Want
doctor or medical assistance
Pendent
No. 4
Nil
Do
Am
entering the harbour.
Flag
N
Nil
Do
Am
proceeding out of the harbour
Flag
Y
Where
best seen, masthead, signal yard arm, or stay signal halliards.
Require
fresh water.
Note
Indicates
a white light
Indicates
a red light

Flags

S, I, X

Nil

Where

best seen masthead, signal yard arm, or stay signal halliards.

Require

agents Mormugao.

(d)

The following signals are made at the Port Signal Station flag staff.

1. Storm Warning Signals

(A)

Distant signals.

I

Cautionary: -There

is a region of squally weather in which a storm may be forming.

Day

Night

Note:-This signal is

hoisted at Port so situated with reference to the disturbed weather that a ship leaving the Port might run into danger during its voyage. If one of the latter mentioned signals is not more appropriate and has not already been hoisted this signal is hoisted at Arabian Sea ports also when a disturbance from Bay of Bengal is crossing the Peninsula and may develop into a cyclone after entering the Arabian Sea.

II

Warning:-

A Storm has formed.

Note:-This signal is

hoisted when there is no immediate danger of the port itself being affected, but ships leaving the port might run into the storm.

B. Local Signals

III-

Cautionary:-The

Port is threatened by squally weather.

IV

Warning:-The

Port is threatened by a storm but it does not appear that the danger is as yet sufficiently great to justify extreme measures of precaution.

Note:-The existence of a

storm can often be determined before its direction of motion can be fixed. In this case all those ports which the storm could possibly strike are warned by this signal.

V-

Danger:-The

Port will experience severe weather from a storm, of slight or moderate intensity, that is expected to cross the coast to the south of the Port.

VI

Danger:-The

Port will experience severe weather from a storm, of slight or moderate intensity, that is expected to cross the coast to the north of the Port.

VII

Danger:-The

Port will experience severe weather from a storm, of a slight or moderate intensity that is expected to cross over or near to the Port.

VIII

Great Danger:-The

Port will experience severe weather from a storm of great intensity that is expected to cross the coast to the south of the Port

IX

Great Danger:-The

Port will experience severe weather from a storm of great intensity that is expected to cross the coast to the north of the Port.

X

. Great Danger:-The

Port will experience severe weather from a storm of great intensity that is expected to cross over or near to the Port.

XI.

Failure of Communications:-Communications

with the Meteorological warning centers have broken down and the local officer considers that there is danger of bad weather.

2. General

(a)

Day Signals

Signal

Where

hoisted

Signification

Flag

N.

Masthead

A

vessel in harbour requires a pilot.

Pendent

No. 4

-do-

A

vessel is on sight.

1

Black Ball

-do-

A

vessel in the harbour is underweight or about to get underweight and that incoming vessels should allow plenty of sea-room.

NOTE:-

Flag 'N' is hauled down on the Signal Station after the pilot boarded the out going vessel.

(b)

Night Signals

One

white light

Masthead

Vessel

(either inside or outside the Breakwater) requires pilot.

Note - When a pilot on board a vessel outside the breakwater intending to enter, sees the 'N' flag at the masthead of a vessel inside or black ball at the Masthead of the Signal Station he must wait outside until the vessel flying the 'N' flag has cleared the breakwater taking care to allow the outgoing vessel plenty of sea room if the 'N' is lowered to half mast he may enter.

Number Of Crew

Every vessel in the Port shall be efficiently manned at all times except whenever any vessel is laid up in any berth, anchorage or mooring especially allotted to her for that purpose, the Deputy Conservator may authorize the vessel to be laid up with a minimum crew for a specified period.

Employment of Persons

No persons shall be employed in cleaning, chipping or painting a vessel or in working in the bilges, boilers or double bottom of a vessel in the Port, without ensuring that the working conditions in such places are made safe to the satisfaction of the Deputy Conservator.

Bathing in the Harbour

Bathing is strictly prohibited in the harbour on account of the sharks which infest it.

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Translation